

# UNITED STATES DISTRICT COURT

DISTRICT OF MASSACHUSETTS

UNITED STATES OF AMERICA

v.

CASE NUMBER:

---

## **DEFENDANT'S WAIVER OF APPEARANCE**

I, \_\_\_\_\_, the above named defendant, acknowledge that I have been advised by my lawyer and the Court-by this form-that pursuant to Rules 10 and 43 of the Federal Rules of Criminal Procedure and the Sixth Amendment to the U.S. Constitution, I have the absolute right to be personally present in open court to be arraigned (that is, advised of the charges against me), and have the indictment read to me in open court. Understanding my rights, I do hereby freely and voluntarily waive my right to be present at my arraignment and my right to have the indictment read to me in open court. I have received a copy of the indictment and I have discussed the charges contained in the indictment and the waiver of appearance at arraignment with my attorney. I fully understand the nature of the offenses charged against me and the right to appear at arraignment. As evidenced by my signature affixed below, I do hereby waive formal arraignment and enter my plea of **NOT GUILTY** to the indictment.

This \_\_\_\_\_ day of \_\_\_\_\_, 202 \_\_\_\_.

---

SIGNATURE (Attorney for Defendant)

---

SIGNATURE (Defendant)

## **INFORMATION BELOW MUST BE TYPED OR PRINTED**

---

Name (Attorney for Defendant)

---

Name (Defendant)

---

City and State